Communication - Observations/evidence

Cancellation number: **000072423**

From: **Andrej Bukovnik** To: **European Union Intellectual Property Office**

Confidential: **No**

EUTM number:	019049378	EUTM Name	Sneko
Nature of request:	Cancellation claimant		

Message:	Dear colleagues, We are submitting a substantiation of the EUTM invalidation. Thank you for your attention to this matter. Best regards,

Signature:	Andrej Bukovnik
Date:	18/06/2025
ID number:	91356

Attachments:	SNEKO FFAE.pdf

Bukovnik & Kulbaba
INTELLECTUAL PROPERTY GUARDIANS

Bukovnik&Kulbaba
Avenue des Courses 22
1050 Brussels
Belgium

+32 476 99 41 28
info@bk-ip.eu
https://bk-ip.eu

Brussels, 18 June 2025

EUROPEAN UNION INTELLECTUAL PROPERTY OFFICE
Avenida de Europa 4
E – 3008 Alicante
Spain

Via e-comm

EUIPO Ref: 000072423 C
Our Ref.: TM1983EU

RE: Invalidation of the registration of EUTM No. 019049378 Sneko in the name of Monolith International GmbH, "Монолит сървис" ЕООД on the basis of the earlier EUTM No. 018910748 snEco in the name of Vadym Gryshyn

Dear Mr. GORNY,

We are referring to the request for invalidity against registration of EUTM No. 019049378 Sneko in the name of Monolith International GmbH, "Монолит сървис" ЕООД filed with the Office on 12 June 2025 and to the Office's Confirmation of notification to the applicant dated 16 June 2025 regarding the above-mentioned invalidity request.

The Invalidation Applicant hereby submits facts and arguments substantiating the invalidity request.

1. Summary of facts and arguments:

On 3 July 2024, Monolith International GmbH and "Монолит сървис" ЕООД (the "EUTM owners") filed EUTM application No. 019049378 Sneko (stylized verbal mark) for the following goods in classes 29 and 30 of the Nice Classification:

"Class 29: Meat and meat products; Dairy products and dairy substitutes; Fish, seafood and

molluscs, not live; Edible oils and fats; Soups and stocks, meat extracts; Processed fruits, fungi, vegetables, nuts and pulses; Birds' eggs and egg products; Vegetable-based snack food; Potato crisps in the form of snack foods; Cheese; Cheese-based snack foods; Pickled vegetables; Fruit, preserved; Marmalade; Fruit marmalade; Jellies for food, other than confectionery; Flavoured nuts; Potato snacks; Croquettes; Beans; Processed pumpkin seeds; Processed pignoli; Seeds, prepared; Sunflower seeds, prepared; Sausages; Prepared meals made from meat [meat predominating]; Fish-based snack food; Milk-based snacks; Snacks of edible seaweed; Tofu-based snacks; Meat-based snack food.

Class 30: Ice creams, frozen yogurts, and sorbets; Coffee, teas and cocoa and substitutes therefor; Cooling ice; Salts, seasonings, flavourings and condiments; Processed grains, starches, and goods made thereof, baking preparations and yeasts; Sugars, natural sweeteners, sweet coatings and fillings, bee products, and edible decorations; Bread and buns; Bakery goods; Pastries, cakes, tarts and biscuits (cookies); Non-medicated confectionery candy; Bonbons made of sugar; Sesame candy bars; Zephyr [confectionery]; Chocolate bars; Popcorn; Chewing gum; Caramel; Chocolate; Cereal-based snack food; Snacks manufactured from muesli; Croûtons; Crackers made of prepared cereals; Snack food products consisting of cereal products; Chocolate based products; Crepes; Rice-based prepared meals; Prepared meals containing [principally] pasta; Prepared meals in the form of pizzas; Frozen pastry stuffed with meat; Frozen pastry stuffed with vegetables; Flour; Pasta; Prepared pasta; Pasta containing stuffings; Muesli; Breakfast cereals, porridge and grits; Dried and fresh pastas, noodles and dumplings; Rice-based snack food; Snack foods consisting principally of bread; Cereal-based savoury snacks; Snack food products made from maize flour; Snack food products made from potato flour; Flour based snack foods; Corn-based savoury snacks.",
which was registered by the Office on 18 October 2024 (hereinafter - the "Contested Trademark").

During the opposition period of EUTM application No. 019049378 Sneko, the Invalidation Applicant did not oppose this application because the contested EUTM owners' group of companies was interested in purchasing the Invalidation Applicant's products for distribution in their chain of supermarkets around the European Union and the parties were in negotiations regarding potential cooperation. Unfortunately, despite the start of cooperation between the parties in early 2025, one of the contested EUTM owners' - Monolith International GmbH – filed an invalidation action against the Earlier EUTM in January 2025. Despite the Invalidation Applicant's efforts to settle the dispute amicably, including through the Office's mediation assistance, the contested EUTM owners opted to proceed with the dispute.

In view of this, on 12 June 2025, Vadym Gryshyn (the Invalidation Applicant) filed an application for declaration of invalidity against the Contested Trademark.

The grounds for cancellation mentioned in the Cancellation claim are those laid down in Article

60.1(a) and Article 8.1(b) EUTMR.

The declaration of invalidity is directed against all goods for which the Contested Trademark is registered.

The application for declaration of invalidity is based on the earlier European Union Trade Mark 018910748 snEco (word mark) filed for registration on 5 August 2023, registered on 17 November 2023 and valid until 5 August 2033, registered in the name of Vadym Gryshyn in classes 29 and 30 of the Nice Classification (the "Earlier Trademark").

The Invalidation Applicant submits that the Contested Trademark shall be declared invalid on the basis of Article 60.1(a) and Article 8.1(b) EUTMR and be removed from the trademark register in its entirety because:

- the Contested Trademark is highly similar to the Earlier Trademark;
- the goods covered by the Contested Trademark are either identical or similar to the goods/services covered by the Earlier Trademark;
- all the aforesaid leads to a likelihood of confusion on the part of the relevant public.

Article 60.1(a) EUTMR – Relative grounds for invalidity

In accordance with Article 60, paragraph 1, subparagraph (a):

1. *"An EU trade mark shall be declared invalid on application to the Office or on the basis of a counterclaim in infringement proceedings:*

    (a) where there is an earlier trade mark as referred to in Article 8(2) and the conditions set out in paragraph 1 or 5 of that Article are fulfilled;"

Article 8.1(b) EUTMR, 8(2) EUTMR – Relative grounds for refusal

"1. Upon opposition by the proprietor of an earlier trade mark, the trade mark applied for shall not be registered:
…
(b) if, because of its identity with, or similarity to, the earlier trade mark and the identity or similarity of the goods or services covered by the trade marks there exists a likelihood of confusion on the part of the public in the territory in which the earlier trade mark is protected; the likelihood of confusion includes the likelihood of association with the earlier trade mark.

2. For the purposes of paragraph 1, 'earlier trade mark' means:

(a) trade marks of the following kinds with a date of application for registration which is earlier than the date of application for registration of the EU trade mark, taking account, where appropriate, of the priorities claimed in respect of those trade marks:

…

(iii) trade marks registered under international arrangements which have effect in a Member State;

(iv) trade marks registered under international arrangements which have effect in the Union;"

2. Comparison of goods and services

The goods covered by the Contested Trademark are:

Class 29: Meat and meat products; Dairy products and dairy substitutes; Fish, seafood and molluscs, not live; Edible oils and fats; Soups and stocks, meat extracts; Processed fruits, fungi, vegetables, nuts and pulses; Birds' eggs and egg products; Vegetable-based snack food; Potato crisps in the form of snack foods; Cheese; Cheese-based snack foods; Pickled vegetables; Fruit, preserved; Marmalade; Fruit marmalade; Jellies for food, other than confectionery; Flavoured nuts; Potato snacks; Croquettes; Beans; Processed pumpkin seeds; Processed pignoli; Seeds, prepared; Sunflower seeds, prepared; Sausages; Prepared meals made from meat [meat predominating]; Fish-based snack food; Milk-based snacks; Snacks of edible seaweed; Tofu-based snacks; Meat-based snack food.

Class 30: Ice creams, frozen yogurts, and sorbets; Coffee, teas and cocoa and substitutes therefor; Cooling ice; Salts, seasonings, flavourings and condiments; Processed grains, starches, and goods made thereof, baking preparations and yeasts; Sugars, natural sweeteners, sweet coatings and fillings, bee products, and edible decorations; Bread and buns; Bakery goods; Pastries, cakes, tarts and biscuits (cookies); Non-medicated confectionery candy; Bonbons made of sugar; Sesame candy bars; Zephyr [confectionery]; Chocolate bars; Popcorn; Chewing gum; Caramel; Chocolate; Cereal-based snack food; Snacks manufactured from muesli; Croûtons; Crackers made of prepared cereals; Snack food products consisting of cereal products; Chocolate based products; Crepes; Rice-based prepared meals; Prepared meals containing [principally] pasta; Prepared meals in the form of pizzas; Frozen pastry stuffed with meat; Frozen pastry stuffed with vegetables; Flour; Pasta; Prepared pasta; Pasta containing stuffings; Muesli; Breakfast cereals, porridge and grits; Dried and fresh pastas, noodles and dumplings; Rice-based snack food; Snack foods consisting principally of bread; Cereal-based savoury snacks; Snack food products made from maize flour; Snack food products made from potato flour; Flour based snack foods; Corn-based savoury snacks.

The goods covered by the Earlier Trademark are:

Class 29: Milk-based snacks; Fruit snacks; Legume-based snacks; Coconut-based snacks; Tofu-based snacks; Potato snacks; Cheese-based snack foods; Nut-based snack foods; Fruit-based snack food; Snack food (Fruit-based -); Cheese; Cheeses; Mold-ripened cheese; Mold-ripened cheeses; Mozzarella cheese; Soft-ripened cheeses; Cheddar cheese; Mould-ripened cheese; Cheese substitutes; Truffle cheeses; Cheese products; Cottage cheese; Cheese mixtures; Low fat cheese; Processed cheese.

Class 30: Cereal based snacks; Crispbread snacks; Tortilla snacks; Cereal snacks; Snacks manufactured from cereals; Cereal-based savoury snacks; Multigrain-based snack foods; Cereal-based snack food; Snack food (Cereal-based -); Cereal based snack foods; Macaroni with cheese; Macaroni cheese; Biscuits for cheese; Flavourings for cheeses; Cheese sauce.

The following contested categories of goods in class 29: "*Cheese-based snack foods; Cheese; Potato snacks; Milk-based snacks; Tofu-based snacks*" and in class 30: "*Cereal-based snack food; Cereal-based savoury snacks;*" are identically present in the list of goods covered by the Earlier Trademark.

The contested goods in class 29 "*Vegetable-based snack food*" are identical with the earlier goods in class 29 "*Legume-based snacks*" as these goods are the same goods expressed with different wording.

Similarly, the contested goods in class 30 "*Tortilla snacks*" are identical to the earlier goods in class 30 "*Corn-based savoury snacks*" as the former goods fall in the boarder category of the earlier goods.

The contested goods in class 30 "*Snack food products made from maize flour*" are identical with the earlier goods in class 30 "*Multigrain-based snack foods*" as the former goods fall within a broader category of the latter goods.

The contested goods in class 30 "*Corn-based savoury snacks; Rice-based snack food*" are identical with the earlier goods in class 30 "*Cereal-based savoury snacks*" because the former goods fall within a broader category of the latter goods because corn and rice are cereal grains.

The contested goods in class 29 "*Flavoured nuts*" are highly similar with the earlier goods in class 29 "*Nut-based snack foods*" as both have the same nature, purpose, and target consumers.

The contested goods in class 29 "*Fish-based snack food; Meat-based snack food*" are highly similar to the earlier goods in class 29 "*Fruit-based snack food*" as both categories belong to a

broader category of goods "*snack food*" with similar commercial purpose and distribution channels.

The contested goods in class 29 "*Snacks of edible seaweed*" are highly similar to the earlier goods in class 29 "*Coconut-based snacks*" as both categories belong to a broader category "*plant-based specialty snacks*" and they are targeting the same (health-conscious) consumers.

The contested goods in class 30 "*Snacks manufactured from muesli*" are highly similar to the earlier goods in class 30 "*Snacks manufactured from cereals*" since muesli is a cereal-based product.

The contested goods in class 30 "*Snack food products made from potato flour*" are similar to the earlier goods "*Cereal based snacks*" because both are processed flour-based snack products with the same purpose and method of use, as well as channels of distribution.

The contested goods in class 30 "*Flour based snack foods*" are similar to the earlier goods in class 30 "*Cereal based snacks*" as cereal flour is a primary component of cereal-based snacks.

The contested goods in class 30 "*Crackers made of prepared cereals*" are highly similar to the earlier goods in class 30 "*Crispbread snacks*" as both share the intended purpose and method of use, the target consumers and distribution channels, and they are in competition with each other.

Also, the contested goods "*Snack foods consisting principally of bread*" are highly similar to the earlier goods in class 30 "*Crispbread snacks*" because both are bread-based snack products.

In view of the aforesaid, the Invalidation Applicant submits that the contested goods are either identical or similar to the earlier goods.

3. Relevant public and degree of attention

While assessing the likelihood of confusion, account should be taken of the average consumer of the category of goods concerned, who is reasonably well informed and reasonably observant and circumspect. It should also be borne in mind that the average consumer's level of attention is likely to vary according to the category of goods or services in question (C-342/97 *'Lloyd Schuhfabrik Meyer'*).

In the present case, the goods concerned are aimed at the general public at large. Based on the established case-law, the degree of attention will be average.

4. Comparison of signs

Two marks are similar when, from the point of view of the relevant public, they are at least partially identical as regards one or more relevant aspects (T-434/05, Gateway/OHIM - Fujitsu Siemens Computers, par. 35). As mentioned above, the relevant public must generally be deemed to be composed of the average consumer who is reasonably well-informed and reasonably observant and circumspect (CJEU Case No. C-412/05, P Alcon/OHIM - Biofarma, par. 62).

Earlier Trademark	Contested Trademark
EUTM No. 018910748 **snEco**	**EUTM 019049378** Sneko

The Earlier Trademark is a word mark while the Contested Trademark in a figurative mark which is composed of one verbal element stylized in an italic font that is not highly distinctive.

Visual comparison

When figurative marks with word elements and word marks are compared visually, what matters is whether the signs share a significant number of letters in the same position and whether the word element in the figurative sign is highly stylised. Similarity may be found despite the fact that the letters are graphically portrayed in different typefaces, in italics or bold, in upper or lower case or in colour.

The Invalidation Applicant submits that the compared signs are visually highly similar as they coincide in the letters "S – N – E - * - O", which are present in the compared signs in the same position. Despite the slight stylization of the verbal element in the Contested Trademark, all letters of the sign of the Contested Trademark can be easily read and understood by the relevant consumers.

Aural comparison

The Invalidation Applicant also submits that the compared signs are aurally identical as they fully coincide in the sounds of the letters "S – N – E – K - O"/"S – N – E – C - O", the sounds of the letters "C" and "K" in the compared signs being identically pronounced as the sound of letter "K", which

means that the sounds of the compared signs are positioned and pronounced identically.

Semantic comparison

As neither of the verbal elements, SNECO or SNEKO, has a specific meaning in relation to the goods/services concerned, similarity of the signs on semantic level cannot be assessed. Should the Office consider that both signs refer to the category of goods "snacks", the compared signs should be considered semantically identical.

Conclusion

In order to assess the degree of similarity between signs, it is necessary to determine the degree of visual, aural and conceptual similarity between them and, where appropriate, to determine the importance to be attached to those different elements, taking account of the category of goods and services in question and the circumstances in which they are marked (L'Oreal v. OHIM, Case C-235/05P, par. 40)

The global appreciation of the visual, aural or conceptual similarity of the marks in question must be based on the overall impression given by the marks, bearing in mind, in particular, their distinctive and dominant components (C-251/95, Sabel, par. 23).

The Invalidation Applicant submits that the Contested Trademark and the Earlier Trademark are overall highly similar.

5. Likelihood of confusion

The risk that the public might believe that the goods or services in question come from the same undertaking or, as the case may be, from economically-linked undertakings, constitutes a likelihood of confusion (Case C-39/97 Canon Kabushiki Kaisha v Metro-Goldwyn-Mayer Inc, par. 29).

According to the Court of Justice, likelihood of confusion must be appreciated globally, taking into account all the factors relevant to the circumstances of the case; this appreciation depends on numerous elements and, in particular, on the degree of recognition of the mark on the market, the association that the public might make between the two marks and the degree of similarity between the signs and the goods and services (C-251/95, Sabel, paragraph 22).

A likelihood of confusion implies some interdependence between the relevant factors and, in particular, between the degree of similarity between the marks and that between the goods or

services. Therefore, a lesser degree of similarity between goods and services may be offset by a greater degree of similarity between the marks and vice versa (Case C-39/97, Canon Kabushiki Kaisha v Metro-Goldwyn Mayer Inc.).

It should be further noted that consumers tend to remember the similarities rather than the dissimilarities of signs. Finally, account should also be taken of the fact that the average consumer only rarely has the chance to make a direct comparison between the different marks and must place his trust in the imperfect picture of them that he has kept in his mind. (Case C-342/94, Lloyd Schuhfabrik Meyer v. Klijsen Handel BV, par. 26).

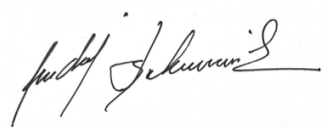
The Invalidation Applicant has established high level of similarity between the Earlier Trademark and the Contested Trademark. It has also been demonstrated that the goods covered by the Contested Trademark are either identical or similar with the goods covered by the Earlier Trademark.

The Earlier Trademark is inherently distinctive with respect to the covered goods. The level of attention of the consumers for the relevant goods is average and it should be remembered that the average consumer only rarely has the chance to make a direct comparison between the different marks but must place his trust in the imperfect picture of them that he has kept in his mind.

Taking into account all of the aforesaid, the Invalidation Applicant submits that there is a likelihood of confusion on the part of the relevant consumer. There is a real risk that the relevant consumer in the territory of the EU may perceive the Contested Trademark as a brand variation or the modernized version of the Earlier Trademark and the goods offered under such a sign as coming from the same or economically linked undertakings.

In view of this, the Invalidation Applicant requests that the Contested Trademark is declared invalid for all goods in classes 29 and 30 and that the EUTM owner is ordered to pay the Invalidation Applicant's costs in accordance with Article 18.1(c)(ii) EUTMIR.

Sincerely yours,
On behalf of the Invalidation Applicant,



Andrej Bukovnik
EUIPO Professional Representative